

Government of West Bengal
Department of Panchayats & Rural Development
Jessop Building (1st Floor), 63, N.S. Road Kolkata-700 001

Memo No. 7352/ PN/O/1/1E-6/12 (Part-1)

Dated: 24.12.2012

From: D.K.Pal
Joint Secretary to the
Government of West Bengal

To: The Secretary,
West Bengal State Election Commission
18, Sarojini Naidu Sarani, Kolkata-700017

Sub: Clarification regarding reservation of office Bearers of GP & PS
Ref: No. 1847-SEC/1D-123/2011 dated 05.12.2012

Sir,

With reference to the above, I am directed by order of the Governor to clarify the issues raised in your letter as under:

Issue raised	Clarification
1. Clarification is sought for as to how reservation of such specified category (STW & BCW) of person can be carried over to the next such Gram where the said office is not required to be reserved for any category of person (where only the seats reserved for ST/SC/BC are considered for such reservation? [Ref: Memo No. 1411/P & RD dated 06.11.2012 of the Additional District Magistrate (P & RD) South 24 Parganas]	1. In this regard, attention is drawn to the provisions stated under sub-rule (4) of rule 2A of the West Bengal Panchayat (Constitution) Rules, 1975. In terms of the said provisions, the following procedure will be followed in the matter of carrying over the reservation of any specified category of persons under the situation in question. i) Such reservation of the office of the Pradhan for STW or BCW, as the case may be, in that Gram where no seat or constituency of member is reserved for such specified category of persons will be deemed to be inoperative. This means that Gram will not be reserved either for ST or STW or BC or BCW as the case may be in the light of explanation made there in the said sub-rule that the expression specified category of persons also means and includes Scheduled Tribes (Women) and the Backward Classes (Women).

ii) Accordingly reservation for such specified category of persons i.e., STW or BCW, as the case may be, will be carried over to the next Gram occurring the list of Gram arranged in ascending order of the serial number assigned to each of them. For the purpose of identifying an appropriate Gram for carrying over the reservation, the list arranged in ascending order of the serial number assigned to the Grams within the district will be taken up in consecutive order and on reaching the last number available, identification may again be taken up, if necessary, from the first serial number in the list.

iii) Here only one thing will be kept in mind that in such Gram where such reservation is carried over, one or more seats or constituencies for members are reserved for that specified category of persons for which the office of the Pradhan is required to be reserved. It does not matter whether such Gram occurs or not in the roster for reservation for that term.

iv) It also does not matter whether the office of the Pradhan in such Gram is not required to be reserved in accordance with rules for any category of persons on account of its not having more than five per cent population of the Scheduled Tribes or the Backward Classes, as the case may be, in respect of the total population in that Gram in terms of clause (a) (ii) of sub-rule (2) of Rule 2A, in which case permission of the Commission must be obtained in terms of clause (vii) of the said sub-rule.

v) The Gram from where such reservation has been carried over will remain eligible in this term of election for reservation, in accordance with rules, for any other category of persons.

	vi) The calculation or exercise done at the earlier stage of reservation will remain unchanged and only a note in this regard for application of the provisions stated under sub-rule 4 will be kept on record.
2. Clarification is sought for as to how the reservation of offices of Upa-Pradhan will be done since only 77 offices are available for reservation of offices of Upa-Pradhan though a total of 233 no. of offices are required to be reserved for Upa-Pradhan out of offices of 310? [Ref: Memo No. 1411/P & RD dated 06.11.2012 of the Additional District Magistrate (P & RD) South 24 Parganas]	2. The number of offices of Upa-Pradhan as are available will be reserved in terms of sub-rule(5) of rule 2A of the West Bengal Panchayat(Constitution) Rules,1975, as amended and the number of offices determined under clause(a) or clause(b), as the case may be, of sub rule(1) will be deemed to be re-determined accordingly. No separate calculation needs to be done in this regard and only a note regarding a no. of offices available for reservation in terms of sub-rule (5) may be kept on record.
3. Clarification is sought for "if after reserving one-half of the offices from SC, ST and BC for women, the required no. of offices are not available in the roster specified for the first term of election for reserving the remaining number of offices i.e. to match one-half of the total offices for women, then what procedure will be followed? [Ref: Memo No. 1411/P & RD dated 06.11.2012 of the Additional District Magistrate (P & RD) South 24 Parganas]	3. i) This is not stated whether this clarification is sought for in respect of making reservation to the offices of Pradhan & Sabhapati or Upa-Pradhan & Sahakari Sabhapati. ii) If it is related to reservation of offices of Upa-Pradhan & Sahakari Sabhapati, then the procedure stated in third proviso of sub-rule (2)(b) of rule 2A of the West Bengal Panchayat (Constitution) Rules, 1975 as amended will be followed keeping in mind the provisions stated under sub-rule(3), (4) and (5), wherever applicable. iii) If after reserving one-half of the offices of the Pradhan or the Sabhapati, as the case may be, from SC, ST and BC for women, the required no. of offices are not available in the roster specified for the first term of election for reserving the remaining number of offices for women i.e. to match the one-half of the total offices reserved for women, then the remaining number of offices will be reserved for women from the offices available in the list selecting every third office in each occasion in terms of foot note of Schedule A of the West Bengal Panchayat (Constitution) Rules, 1975 as amended. If this exercise does

	not solve the problem, then the District authority may be requested to submit the calculation sheet in this regard for further consideration of this department.
4. Whether the word "such specified category of persons" be applied only in respect of the word "women" or the entire specific category like "Scheduled Tribes women". For example, if the Chairperson is initially selected to be reserved for "Scheduled Tribes women", and later on, it is found that no Constituency in the said GP/PS is reserved for "Scheduled Tribes women", although there are seats reserved for "Scheduled Tribes" persons, then whether the office of the Chairperson shall remain reserved for "Scheduled Tribes" or not i.e. whether only the "women" part remain inoperative, keeping intact the words "Scheduled Tribes" or whether the inoperative part be applied to "Scheduled Tribes" too? [Ref: Memo No. 29/P/PGE'13 dated 22.11.2012 of the District Panchayat & Rural Development Officer, Malda]	4. Clarification given at para 1 above will also be followed in this regard i) However, in this regard, it is again reiterated that the word 'such specified category of persons' will be applied in respect of the 'Scheduled Tribes Women'. ii) If the Chairperson is initially selected to be reserved for "Scheduled Tribes women", and later on, it is found that no Constituency in the said GP/PS is reserved for "Scheduled Tribes women", although there are seats reserved for "Scheduled Tribes" persons, then such office of the Chairperson will also not remain reserved for "Scheduled Tribes" and the reservation of such specified category i.e. STW will be carried forward to the next Gram in the manner stated under Para 1 above.

Yours faithfully

(D.K.Pal)

Memo No.7352/1(2)/PN/O/1/1E-6/12 (Part-1)

Dated: 24.12.2012

Copy forwarded for kind information to :

1. The Additional District Magistrate (P & RD), South 24 Parganas.
2. The District Panchayat & Rural Development Officer, Malda

(D.K.Pal)

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